

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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DAVID VALES,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER
ANTHONY TACCETTA (Shield # 23504) and NYPD
OFFICERS JANE and JOHN DOES #'s 1-8 (Names and
Numbers are unknown at present) and Other Unidentified
Members of the New York City Police Department,

Defendants.
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SUMMONS

Index #

Basis of Venue:

Place of Incident

Plaintiff Designates
Kings County as they
place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 14, 2021

Respectfully submitted,

/s/ Sydney Ohagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
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TO: CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD OFFICER ANTHONY TACCETTA (Shield #23504), 60th Precinct, Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
DAVID VALES,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD OFFICER
ANTHONY TACCETTA (Shield # 23504) and NYPD
OFFICERS JANE and JOHN DOES #'s 1-8 (Names and
Numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Defendants.
-----X

Plaintiff **David Vales**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint
herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff. Defendants additionally used excessive force and subjected Plaintiff to unsafe conditions while in police custody in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. David Vales is and was at all relevant times a resident of New York.
3. POLICE OFFICER ANTHONY TACCETTA is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER ANTHONY TACCETTA is being sued in his individual capacity and official capacity.
5. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

6. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
7. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officers John and Jane Doe #2-8 are being sued in his/her individual capacity and official capacity.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
13. The City of New York held a 50(h) hearing examination of the Plaintiff on May 20, 2020.

STATEMENT OF FACTS

14. On June 14, 2019 at approximately 2:00 a.m., at 2nd Avenue and 13th Street, in Brooklyn, New York, Plaintiff Vales was driving with his friend in the passenger seat when, upon information and belief, police officers from the 27th and 60th precinct, including NYPD officer Anthony Taccetta (Shield # 23504), and NYPD officers John and Jane Does #1-8, and other yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Vales.
15. Defendant officers unlawfully, stopped, searched, and arrested Plaintiff Vales while he was operating a vehicle. Defendant offices approached the vehicle with guns drawn, and despite Plaintiff Vale's and his passenger's complete compliance with every command, guns were pointed in Plaintiff Vales' face. One defendant officer threatened to shoot Plaintiff Vales. This threat placed plaintiff in fear of his life He feared he was going to be shot by officers who were unnecessarily aggressive toward him from the moment he pulled the vehicle over. Once defendant officers indicated for Plaintiff Vales to pull the car over to the side of the road, he was not free to leave.
16. Defendants purported that Plaintiff Vales committed grand larceny by driving a vehicle owned by his girlfriend's father; however, Plaintiff Vales repeatedly told defendant officers he had permission to use the vehicle as evidenced by the keys in his possession. He provided his girlfriend's name as the individual who authorized him to use the vehicle. In fact, Plaintiff Values had used this vehicle multiple times in the past with express permission from his girlfriend, who is the daughter of the complaining witness.
17. Defendants regarded this information and arrested plaintiff for grand larceny, among other charges. Plaintiff denies these charges and provided testimony and objective evidence at the time of his arrest demonstrating the invalidity of the charges.
18. During the arrest of the plaintiff, defendants committed excessive force against him by maliciously, gratuitously, and unnecessary placing excessively tight handcuffs on plaintiff's wrists and jerking his arms into the air while cuffed. Those who did not touch plaintiff witnessed these acts, but failed to intervene and protect plaintiff from this conduct.
19. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiffs, since plaintiff was unarmed, compliant, and did not resist arrest.
20. Plaintiff was physically injured as a result of the excessive use of force, and suffered swollen wrists and pain to his shoulder.
21. While plaintiff was incarcerated at the 27th precinct and Central Booking, defendants falsely and maliciously told the New York County District Attorney Attorney's Office that plaintiff had committed the crimes of burglary, trespass, and criminal possession of stolen property, among other crimes. Defendants knew this allegation to be false based on information provided at the time of plaintiff's arrest.

22. Based on the defendants' false statements, the King's County District Attorney's office chose to prosecute plaintiff under docket number CR-022724-19KN.
23. Bail was set on Plaintiff at arraignment and was subsequently incarcerated for approximately 5 days. During his confinement he was subject to deprived, filthy, and inhumane conditions.
24. On December 11, 2019, the above-stated malicious prosecution terminated in plaintiff's favor when the case against him was dismissed and sealed in its entirety.
25. While in custody at the Brooklyn House of Detention, gang members physically attacked Plaintiff Vales while he was locked in a cell with them. He suffered bruises and bumps.
26. Plaintiff suffered stress, anxiety, and depression as a result of the arrest and incarceration.
27. Plaintiff missed six days of work and school as a result of his incarceration.

FIRST CAUSE OF ACTION

ASSAULT

28. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 27 with the same force and effect as if more fully set forth at length herein.
29. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff. Plaintiff suffered such assault by presently unknown officers while being transported from the precinct to Central Booking.
30. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
31. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

BATTERY

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.
33. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive

manner with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery. Plaintiff was assaulted by police officers.

34. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
35. The City, as the employer of Defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

36. Plaintiff repeats and alleges paragraphs 1 through 35 as if fully set forth herein.
37. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
38. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
39. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

MALICIOUS PROSECUTION

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.
41. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
42. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
43. Defendants commenced and continued a criminal proceeding against plaintiff.
44. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
45. The prosecution and criminal proceedings terminated favorably to plaintiff on December 11, 2019.

46. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
47. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.
49. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SIXTH CAUSE OF ACTION

FAILURE TO INTERVENE

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.
51. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
52. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
53. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
54. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
55. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION**NEGLIGENCE**

- 56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.
- 57. Defendants owed a duty of care to plaintiff.
- 58. Defendants breached that duty of care by subjecting his to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
- 59. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
- 60. All of the foregoing occurred without any fault by plaintiff.
- 61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION**CRUEL AND UNUSUAL PUNISHMENT**

- 62. The plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.
- 63. By actions described herein, the individually named police officer defendants and correction officers, each acting individually and in concert with one another, intentionally disregarded plaintiff's medical needs. Defendants refused to provide any medical treatment to the plaintiff, despite his repeated requests they do so. This failure to provide treatment inflicted unnecessary and wanton pain upon plaintiff. As a result, plaintiff suffered severe pain and prolonged physical harm.
- 64. As a result of the foregoing, plaintiff was subjected to cruel and unusual punishment.
- 65. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION**NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

- 66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
68. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
69. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

TENTH, ELEVENTH, TWELFTH, THIRTEENTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of First, Fourth, Fifth, Eighth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal first-amendment-retaliation claim (9th claim); false-arrest/excessive force/cruel and unusual punishment/unlawful-search claims (10th claim); malicious-prosecution claim (11th claim) and deprivation-of-fair-trial claim (12th claim).

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.
71. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
72. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
73. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his First, Fourth, Fifth, Eighth and Fourteenth Amendment rights.
74. In particular, Plaintiff alleges that Defendants' retaliatory and harassing false arrest, use of undue and excessive force upon him causing physical injury, unlawful search, malicious prosecution and fabrication of evidence violated his First, Fourth, Fifth, Eighth and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.
75. Insofar as Plaintiff's federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiff repeats and reiterates the above allegations in support of the federal claims here.
76. In the event Plaintiff prevails at trial on one, some or all of his 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

77. THIRTEENTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.
79. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
80. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
81. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
82. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.
83. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
84. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested, subjected to undue force and unlawful search, and prosecuted.
85. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE, DAVID VALES, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
March 14, 2021

Respectfully submitted:

By: *Sydney Ohagan*
Sydney Ohagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

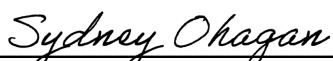
NYPD OFFICER ANTHONY TACCETTA (Shield #23504), 60th Precinct, Brooklyn, New York

ATTORNEY'S VERIFICATION

I, **SYDNEY O'Hagan**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
March 14, 2021



Sydney O'Hagan, Esq.